

to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver.]) Applied here, the Court finds that failure to timely oppose this Motion is deemed to be Plaintiff’s consent to the granting this Motion.

After reviewing the moving papers and considering the applicable statutory and decisional authority, the Court finds good cause to grant Plaintiff Threez Investments, Inc.’s Motion to Compel Further Responses to Discovery and for Monetary Sanctions to be imposed on Defendant.

Ruling

1. Plaintiff Threez Investments, Inc.’s (“Plaintiff”) Motion to Compel Further Responses to Discovery and for Monetary Sanctions in the amount of \$3,750.00 to be imposed on Defendant is **granted**.
2. The Court will execute the proposed order lodged on February 5, 2026 and the clerk of the Court will attach this tentative ruling and file the order. Plaintiff’s Counsel shall serve a Notice of Entry of Order to Defendant.
3. No appearance is required at the hearing on April 29, 2026.

23. 9:01 AM CASE NUMBER: C22-01897
CASE NAME: AMANDA GALLAGHER VS. ESSEX PROPERTY TRUST INC, A MARYLAND CORPORATION
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO PLTFs DISCOVERY REQUESTS**
FILED BY: GALLAGHER, AMANDA
TENTATIVE RULING:

Summary

Plaintiffs Amanda and Shane Gallagher’s (“Plaintiffs”) Motion to Compel Responses to Plaintiff’s Discovery Requests and for Admissions to be Deemed Admitted from Defendant Essex Property Trust, Inc. (“Defendant”) is **granted**. Sanctions requested by both parties are **denied**.

Background

This case involves a dispute between Plaintiffs who are tenants, and Defendant, who is an owner of real property leased to Plaintiffs. The causes of action allege breach of the covenant of quiet enjoyment, habitability, retaliation, negligence, and unfair business practices.

On December 22, 2025, Plaintiffs served upon Defendant Request for Production of Documents, Set

two, Form Interrogatories, Set two, Special Interrogatories, Set Two and a Request for Admissions, Set Two. Plaintiffs allege that Defendants responses were due on January 21, 2026. Defendant did not respond timely.

Plaintiff filed this Motion to Compel Responses on February 26, 2026, accompanied by Notice, Memorandum of Points and Authorities, Declaration of Counsel Andrew V. Gabriel. Plaintiffs seek sanctions in the amount of \$1,290.

On April 16, 2026, Defendant filed an opposition, supported by an 88-page Declaration of Robert D. Bustamante, Memorandum of Points and Authorities, and proposed order. The salient arguments advanced by Counsel Bustamante summarize as follows. Defendant claims that Plaintiffs' counsel had been afforded professional courtesy when provided with generous extensions of time to respond to Defendant's discovery requests when Plaintiff's counsel experienced personal family crises. However, he was not shown equal treatment and requests that this court grant him equitable relief in denying Plaintiffs' Motion.

Counsel Bustamante explains further that Plaintiffs' discovery were not properly served. Specifically, Plaintiffs "failed to utilize out firm's designated and required services list" (Bustamante, Declaration para. 3)... and did not include the firm's case manager. Accordingly, Defendant maintains that Plaintiff failed to provide valid notice. Defendant also claims that co-counsel experienced unforeseen illness and medical crises requiring reallocation of law firm resources. Under these circumstances, although Defendants did not provide any response to discovery, this motion should be denied.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor*

& *Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Here, Plaintiffs propounded discovery to Defendant in the form of interrogatories, a request for production of documents and a request for admission. Defendant's counsel claims that he attempted to meet and confer with Plaintiffs' counsel to resolve the discovery dispute. However, *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411 establishes that there is **no obligation to meet and confer if a party fails to respond at all**. While professional courtesy suggests that it is always good practice to informally resolve discovery disputes before resorting to a motion, the one exception to the statutory requirement to meet and confer is where the other party fails to provide any response to the discovery. Here, Defendant did not timely respond to any discovery propounded by Plaintiffs.

The Court notes some concern that Plaintiffs' Counsel has not reciprocated the same level of professional courtesy that appears to have been extended to his office when he faced the similar circumstance of not responding to discovery served on Plaintiffs. Professional courtesy requires at least some consideration of past efforts. However, the Court also considers the impending trial date and issue conference, and understands that a prolonged meet and confer effort is not likely to produce discovery in time for trial in this four (4) year old case, especially where, as in this case, discovery was served nearly five months ago. Between the filing of this Motion and this hearing, rather than spend energy opposing this Motion, Defendant should have prepared responses.

The Court understands that counsel for Plaintiffs and Defendant have instituted internal protocols for the handling of discovery which require certain office staff are to be served. This requirement appears to be administrative and is not mandated by the California Rules of Court or the Civil Discovery Act. The rules for service simply require that the Parties perform service of discovery pursuant to Cal. Code of Civ. Proc. §§ 1011 and 1013. None of those procedures outline a process for service, other than to serve counsel's office in person, by mail, or by electronic service. The Court is not able to enforce internal protocol for service that appear to impose more requirements than the Code of Civil Procedure. As such, the argument advanced by Defendant's counsel that internal protocol for service were not followed, and, therefore service is defective, is not persuasive to the Court.

Interrogatories

Where a party to whom interrogatories are directed fails to serve timely responses, they "waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product." (Cal. Code of Civ. Proc. (CCP) § 2030.290(a). Moreover, under Section 2030.290(b), "The party propounding the interrogatories may move for an order compelling response to the interrogatories." Where a motion to compel answers is made, Section 2030.290(c) states, "The court **shall** impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other

circumstances make the imposition of the sanction unjust.”

Production or Inspection of Documents

Similarly, CCP § 2031.300(a) states that where a party fails to serve a timely response to requests for production of documents, they waive all objections, including privilege. The requesting party may move to compel responses under CCP § 2031.310(b) and(c), and the court “**shall** impose sanctions [].. against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

Request for Admissions

CCP § 2033.280(a) states that where a party fails to serve a timely response to a request for admissions, they waive all objections, including privilege. The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted under CCP § 2033.280(b) and(c), and the court “shall impose sanctions [].. against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

After reviewing the papers submitted by Counsel, and applying the applicable statutory and decisional authorities, the Court finds good cause to grant Plaintiffs’ motion. The Court, therefore, makes the following orders.

Ruling

1. Plaintiff’s Discovery Motions are **granted**. The Court will execute the proposed order lodged by Plaintiff’s Counsel on February 26, 2026, with the following modifications: Discovery responses, including documents and items requested, shall be produced, without objections, no later than ten (10) days from the date of service of this order.
2. Plaintiff’s request for sanctions is **denied**. The Court finds that Defendant had substantial justification in responding to in-house crises, including the illness of co-counsel, which appears to justify Defendant’s mistake, inadvertence and negligence in failing to respond timely to discovery requests. Accordingly, the imposition of sanctions, especially where Plaintiff’s counsel was provided with professional courtesies in the past, are unjust.
3. Defendant’s request for sanctions are **denied**. Plaintiffs’ motion was not done in bad faith. The Court finds substantial justification in granting this motion.
4. Each party shall bear their own costs and fees for prosecuting and defending against this motion.
5. Plaintiff’s counsel shall prepare and e-file a proposed order that conforms to this ruling, attaching the tentative ruling, no later than ten (10) days from the date of this hearing.

6. The issue conference calendared May 15, 2026 and the trial, calendared for June 22, 2026, are confirmed.

24. 9:01 AM CASE NUMBER: C25-02047

CASE NAME: PETER MOREN VS. KATHRYN ROGERS

***HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION OF DEF KATHRYN CRAFT ROGERS**

FILED BY: MOREN, PETER GEORGE

TENTATIVE RULING:

Summary

Plaintiff George Moren ("Plaintiff") filed a Motion to Compel Deposition of Defendant Kathryn Rogers ("Defendant") on March 3, 2026. Plaintiff makes this motion on the grounds that Defendant has failed to appear for her deposition duly noticed and/or rescheduled the noticed deposition multiple times. In reviewing the moving and opposition papers, the Court notes that Defendant had submitted to her deposition on March 31, 2026. The Court finds and orders that this motion is **moot**. No appearance is required at the hearing on April 29, 2026.

This motion should have been vacated by Plaintiff. Plaintiff's request for sanctions in the form of attorney's fees and costs is **denied**. However, the Court orders that Plaintiff may recover the costs of the certified shorthand reporter retained for any missed depositions for which a court reporter had appeared and for which Plaintiff had paid the appearance fees of the court reported. Plaintiff shall provide a declaration, including an invoice for costs incurred for Defendant's missed deposition, to Defendant's Counsel. The costs shall be paid within thirty (30) days.